

AMENDMENTS TO THE CALIFORNIA RULES OF COURT
Adopted by the Judicial Council on April 4, 2020, effective Immediately

1	Rule 8.66. Extending Tolling or extending time because of public emergency	2
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1 **Rule 8.66. ~~Extending~~ Tolling or extending time because of public emergency**

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3 **(a) Emergency tolling or extensions of time**

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5 If made necessary by the occurrence or danger of an earthquake, fire, public health
6 crisis, or other public emergency, or by the destruction of or danger to a building
7 housing a reviewing court, the Chair of the Judicial Council, notwithstanding any
8 other rule in this title, may:

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10 (1) ~~Extend Toll for up to 30 days or extend by no more than 14 additional 30~~
11 ~~days the time to do any act required or permitted under any time periods~~
12 ~~specified by these rules; or~~
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14 (2) Authorize specified courts to toll for up to 30 days or extend by no more than
15 30 additional days the time to do any act required or permitted under any
16 time periods specified by these rules.

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18 *(Subd (a) amended effective April 4, 2020.)*
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20 **(b) Applicability of order**

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22 (1) An order under (a)(1) must specify the length of the tolling or extension and
23 ~~whether it~~ the order applies throughout the state, only to specified courts, or
24 only to courts or attorneys in specified geographic areas, or applies in some
25 other manner.
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27 (2) An order ~~of the Chair of the Judicial Council~~ under (a)(2) must specify the
28 length of the authorized tolling or extension.
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30 *(Subd (b) amended effective April 4, 2020.)*
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33 **(c) ~~Additional extensions~~ Renewed orders**

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35 If made necessary by the nature or extent of the public emergency, with or without
36 a request, the Chair of the Judicial Council may ~~extend or~~ renew an order issued
37 under ~~(a)~~ this rule prior to its expiration. An order may be renewed for an
38 additional periods of not to exceed 30 days per renewal.

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40 ~~(1) No more than 14 days for an order under (a)(1); or~~

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42 ~~(2) No more than 30 days for an order under (a)(2).~~
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(Subd (c) amended effective April 4, 2020; previously amended effective January 1, 2007.)

Rule 8.66 amended effective April 4, 2020; previously amended and renumbered effective January 1, 2007; repealed and adopted as rule 45.1 effective January 1, 2005.

Advisory Committee Comment

The Chief Justice of California is the Chair of the Judicial Council (see rule 10.2).

Any tolling ordered under this rule is excluded from the time period specified by the rules. (See *Woods v. Young* (1991) 53 Cal.3d 315, 326, fn. 3 [“Tolling may be analogized to a clock that is stopped and then restarted. Whatever period of time that remained when the clock is stopped is available when the clock is restarted, that is, when the tolling period has ended.”].)

The tolling and extension of time authorized under this rule include and apply to all rules of court that govern finality in both the Supreme Court and the Courts of Appeal.